

ORIGINAL

BEFORE THE
FEDERAL MARITIME COMMISSION

LOGFRET, INC.,

Complainant,

v.

KIRSHA, B.V.,
Leendert Johannes BERGWERFF a/k/a Hans BERGWERFF,
LINDA SIEVAL,

Respondents.



Docket No. 18-10

Cc:
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VERIFIED COMPLAINT

INTRODUCTION

1. Complainant Logfret, Inc. ("Logfret" or "Company"), by its attorneys at Venable LLP, hereby brings this Verified Complaint against Kirsha, B.V. and its principal Mr. Leendert Johannes Bergwerff, also known as Mr. Hans Bergwerff (hereinafter, Hans Bergwerff), as well as Ms. Linda Sieval (collectively, "Respondents"), in accordance with Section 10(b)(13) of the Shipping Act of 1984, as amended (the "Shipping Act"), 46 U.S.C. § 40101 *et seq.*, and pursuant to the Federal Maritime Commission's ("FMC['s]") authority under Section 11(a) of the Shipping Act, 46 U.S.C. § 41301(a), in response to Respondents' violations of the Shipping Act.

2. Complainant alleges upon information and belief the following:

PARTIES

3. Complainant Logfret is a corporation organized and existing under the laws of the State of Delaware, with its principal place of business at 6801 Westside Avenue, North Bergen, New Jersey 07047. Logfret is a non-vessel-operating common carrier ("NVOCC") that provides transport, logistics and related shipping services to customers in the United States and

worldwide. Logfret is registered with the FMC as an Ocean Transportation Intermediary (“OTI”) under license no. 007636, pursuant to 46 C.F.R. Part 520 of the Federal Maritime Commission Regulations. Logfret is a wholly-owned subsidiary of Logfret Group, a non-US company.

4. Complainant Logfret is an affiliate of Logfret, B.V., a company organized under the laws of The Netherlands and headquartered at Ringdijk 366, 2983 GR Ridderkerk, The Netherlands. Respondent Ms. Linda Sieval, a Dutch national, was a sales manager for Logfret B.V. until the termination of her employment on March 1, 2018.

5. Upon information and belief, the physical address for Ms. Sieval is Blauwkarper 10, 2318 Leiden NL. Upon information and belief, the email address for Ms. Sieval is lsieval@live.nl.

6. Upon information and belief, Respondent Kirsha, B.V. is a corporation organized and existing under the laws of The Netherlands, with its principal place of business at Noordersingel 78, 2993 TA Barendrecht, The Netherlands.

7. Upon information and belief, the managing director of Kirsha, B.V. is Respondent Mr. Hans Bergwerff, a Dutch national, who exercises signatory authority and direct control over Kirsha, B.V. Mr. Bergwerff is also currently Country Manager for BeNeLux at Visa Global Logistics.

8. Upon information and belief, the physical address for Mr. Bergwerff is Noordersingel 78, 2993 TA Barendrecht, The Netherlands. Upon information and belief, the email address for Mr. Bergwerff is hans.bergwerff@ziggo.nl.

JURISDICTION

9. The FMC has jurisdiction over this action pursuant to the Shipping Act of 1984, 46 U.S.C. § 40101 *et seq.*

10. The FMC may award payment of reparations for actual injury caused by a violation of the Shipping Act, pursuant to the filing of a sworn complaint alleging same and filed within three (3) years of accrual of the claim. 46 U.S.C. §§ 41301, 41305.

MEMORANDUM OF THE FACTS

11. On or about March 28, 2006, Mr. Bergwerff assumed responsibility and control of Logfret B.V. as managing director. During this tenure, Kirsha B.V., by and through its principal Mr. Bergwerff and as assisted by Ms. Sieval of Logfret B.V., committed numerous unethical and illegal management decisions with respect to Logfret B.V., including improper leasing and refurbishment of new offices, improper accession to a new management agreement, and misappropriation of company assets. Among the many illegal acts committed by Respondents were a number of violations of the Shipping Act, as amended, to the irreparable detriment and prejudice of Logfret.

12. Delmar International Inc. ("Delmar International") is a Canadian non-vessel-operating common carrier ("NVOCC") and logistics company, which is headquartered at 10636 Cote de Liesse, Montreal, Quebec, H8T 1A5, Canada. Delmar is a competitor of Logfret in the provision of logistics services.

13. Delmar International (USA) Inc. ("Delmar USA") is the U.S. subsidiary of Delmar International, and an NVOCC and freight forwarder licensed with the FMC (License No. 004031). Delmar USA has a principal place of office at One Cross Island Plaza, Suite 227, Rosedale, NY 11422 USA, and also has offices at, among other places, 1691 Pheonix Boulevard,

Suite 300, Atlanta, GA 30349 USA.

14. On or about March 1, 2017, Mr. Bergwerff, with the help of Ms. Sieval, directed Logfret B.V. to handle all customers for inbound shipments to the United States through Delmar USA rather than Logfret.

15. For months thereafter, Mr. Bergwerff knowingly received information about the nature, kind, quantity, and destination of cargo tendered or delivered to Logfret, B.V., the issuer of the bill of lading.

16. Mr. Bergwerff and Ms. Sieval used this information to unlawfully route inbound shipments away from Logfret toward at least one competing common carrier, Delmar USA. Mr. Bergwerff and Ms. Sieval also unlawfully and improperly disclosed that same information to Delmar USA.

17. During the course of their improper activities, Mr. Bergwerff and Ms. Sieval also improperly and fraudulently made use of the Logfret bill of lading.

18. Respondents' unlawful activities, on information and belief, continued until May 12, 2017, when Mr. Bergwerff was dismissed by the general meeting as managing director of Logfret B.V.

19. As a direct consequence of the unlawful conduct in which Respondents engaged, Logfret has been harmed and prejudiced in a number of ways, including suffering the loss of past and current revenue as well as loss of reputation, all of which has caused Logfret significant damages of at least \$2,000,000.

CAUSES OF ACTION

COUNT I: VIOLATION OF 46 U.S.C. § 41103(a)

20. Complainant Logfret incorporates by reference each of the facts and allegations

stated in paragraphs 1 through 19 as though set forth herein.

21. 46 U.S.C. § 41103(a) prohibits “[a] common carrier, marine terminal operator, or ocean freight forwarder, either alone or in conjunction with any other person, directly or indirectly, [from] knowingly disclos[ing], offer[ing], solicit[ing], or receiv[ing] any information concerning the nature, kind, quantity, destination, consignee, or routing of any property tendered or delivered to a common carrier, without the consent of the shipper or consignee, if the information—(1) may be used to the detriment or prejudice of the shipper, the consignee, or any common carrier; or (2) may improperly disclose its business transaction to a competitor.”

22. Between March 1, 2017 and May 12, 2017, Mr. Bergwerff, by and through Kirsha B.V., knowingly received information about the nature, kind, quantity, and destination of cargo tendered or delivered to Logfret, B.V., the issuer of the bill of lading. Furthermore, Mr. Bergwerff, by and through Kirsha B.V., and Ms. Sieval used this information to the detriment and disadvantage of Logfret, a common carrier, by unlawfully routing inbound shipments away from Logfret toward at least one competing common carrier in Atlanta, Delmar USA. As a result of these repeated violations of 46 U.S.C. § 41103(a), Logfret sustained financial and reputational harm in the United States due to the rerouting of these shipments.

23. Respondents also knowingly and improperly disclosed information regarding these shipments to at least one competing freight forwarder, Delmar USA. As a result of these repeated violations of 46 U.S.C. § 41103(a), Logfret sustained financial and reputational harm in the United States.

INJURY SUFFERED BY LOGFRET

24. Logfret has been actually and materially injured by Respondents, namely, Kirsha B.V., Mr. Bergwerff, and Ms. Sieval, as alleged above. Specifically, Logfret has suffered

financial damages of at least \$2,000,000 as a direct result of Respondents' repeated violations of 46 U.S.C. § 41103(a).

DAMAGES

25. As a direct consequence of the unlawful conduct engaged in by Respondents, Logfret has suffered injury in the amount of \$2,000,000 as described herein, and as may be further demonstrated in this proceeding, and seeks relief as provided below.

PRAYER FOR RELIEF

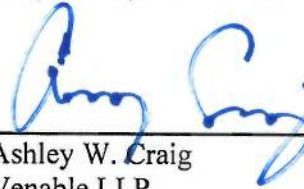
WHEREFORE, Logfret respectfully prays for relief from the Commission as follows:

1. An Order compelling Respondents to answer the charges made herein and scheduling a hearing in Washington D.C. during which the Commission may receive evidence in this matter;
2. An Order, after due investigation and hearing, finding Respondents to have violated 46 U.S.C. § 41103(a);
3. An Order compelling Respondents to cease and desist its activities in violation of the Shipping Act, as amended, as alleged herein;
4. An Order awarding Logfret damages in the amount of \$2,000,000 to be proven under 46 U.S.C. § 41305, interest under 46 U.S.C. § 41305(a), and reasonable attorneys' fees under 46 U.S.C. § 41305(e); and

5. Such other and further relief as the FMC determines to be just and proper.

Dated: 11/7/2018

Respectfully submitted,



Ashley W. Craig
Venable LLP
600 Massachusetts Avenue, N.W.
Washington, DC 20001
Telephone: (202) 344-4351
Facsimile: (202) 344-8300
awcraig@venable.com

Counsel for Complainant Logfret, Inc.

VERIFICATION

Mr. Jean Francois Millet, being first duly sworn to oath, deposes and states that he is Chairman of Logfret, Inc., that he has read the foregoing Verified Complaint, and that the facts stated therein he believes to be true on information and belief and upon information received from others.

Dated: 11/9/2018



Jean Francois Millet
Chairman
Logfret, Inc.
North Bergen, New Jersey, USA